

25STCV33105 25STCV33105

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-20

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Case Number: 25STCV33105 Hearing Date: August 20, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

MIRANDA

AMADOR,

vs.

SUPERBALIFE

INTERNATIONAL, LLC, et al.

Case No.:

25STCV33105

Hearing Date: August 20, 2026

Defendants Superbalife International

LLC's, Verified Nutrition LLC's, and Corinne Buckley's motion to compel arbitration of Plaintiff Miranda Amador's claims in this action is denied.

Defendants Superbalife International LLC ("Superbalife"), Verified Nutrition LLC ("Verified Nutrition"), and Corinne Buckley ("Buckley") (collectively, "Defendants") move for an order compelling arbitration of all claims asserted

by Miranda Amador ("Amador") ("Plaintiff") and staying the instant action during the pendency of arbitration.
(Notice of Motion, pg. 1; 9 U.S.C. §§1 et seq.; C.C.P. §2699(c)(1); Labor Code §§2699(a), (c)(1).)

Background

On November 12, 2025, Plaintiff filed the instant action against Defendants asserting twelve causes of action: (1) discrimination on the basis of disability in violation of FEHA; (2) failure to engage in the interactive process in violation of FEHA; (3) harassment on the basis of age, disability, and/or medical condition in violation of FEHA; (4) age discrimination in violation of FEHA; (5) failure to provide reasonable accommodation in violation of FEHA; (6) retaliation for opposing practices forbidden by FEHA in violation of FEHA; (7) violation of CRFA rights; (8) retaliation for taking/requesting CFRA leave; (9) failure to prevent discrimination and retaliation in violation of FEHA; (10) wrongful termination in violation of public policy; (11) violation of Labor Code §1102.5; and (12) failure to permit inspection of payroll and personnel records in violation of Labor Code §§226, 432, 1198.5. (See Complaint.) Defendants Superbalife and Verified Nutrition filed their Answer on January 8, 2026. Defendant Buckley filed her answer on March 25, 2026.

Defendants filed the instant motion on May 5, 2026. Plaintiff filed her opposition on May 22, 2026. Defendants filed their reply on May 29, 2026.

On June 1, 2026, Plaintiff filed a notice of new authority in support of Plaintiff's opposition.

The Court heard argument at a hearing on June 5, 2026, and continued the hearing to June 16, 2026.

On June 16, 2026, the Court called the matter for hearing and Defendants' counsel did not appear. The Court continued the hearing on the instant motion to June 30, 2026.

On June 30, 2026, this Court heard argument and ordered counsel to submit a sur-reply by August 11, 2026.

On August 11, 2026, Plaintiff filed a sur-reply in support of her opposition.

Motion to Compel Arbitration

A. Arbitration Agreement

Plaintiff

argues Defendants waived any right to arbitrate this matter because on January 16, 2026, eight days after filing the Answer, Defendant Superbalife served Form Interrogatories—General, Set One (“FROG”), and Requests for Production of Documents, Set One (“RFP”) on Plaintiff. (Opposition, pgs. 9-11; Decl. of Tracy ¶9, Exh. 3.) The RFP contained 72 separate requests directed to Plaintiff’s claims, alleged damages, and other merits issues. (Decl. of Tracy ¶9, Exh. 3.) The discovery did not mention arbitration and was not limited to arbitration, formation, or enforceability issues. (Decl. of Tracy ¶10.)

Plaintiff’s

argument that Defendants waived their right to arbitrate the instant dispute is well taken. The California Supreme Court in *Quach v. California Commerce Club, Inc.* recently articulated a new standard to establish waiver of a right to compel arbitration:

To

establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. (Lynch, *supra*, 3 Cal.5th at p. 475, 219 Cal.Rptr.3d 754, 396 P.3d 1085; see *Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 31, 44 Cal.Rptr.2d 370, 900 P.2d 619 (Waller) [burden is on party claiming waiver “to prove it by clear and convincing evidence”]; 30 Cal.Jur.3d, *supra*, Estoppel and Waiver, § 38.) Under the clear and convincing evidence standard, the proponent of a fact must show that it is “highly probable” the fact is true. (Conservatorship of O.B. (2020) 9 Cal.5th 989, 995, 266 Cal.Rptr.3d 329, 470 P.3d 41 (O.B.).) The waiving party’s knowledge of the right may be “actual or constructive.” (*Outboard Marine Corp. v. Superior Court* (1975) 52 Cal.App.3d 30, 41, 124 Cal.Rptr. 852.) Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it. (Lynch, *supra*, 3 Cal.5th at p. 475, 219

(Quach

v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 584, emphasis

added.) No showing of prejudice is

required to establish waiver. (Id.

at pgs. 572, 581-585, [abrogating prejudice requirement of St. Agnes Medical

Center v. PacificCare of California (2003) 31 Cal.4th 1187 and overruling

other cases in that regard].) As

articulated above, Quach v. California Commerce Club, Inc. holds that

the required knowledge may be “actual or constructive,” and that abandonment may

be established by objectively inconsistent conduct from which a reasonable

factfinder concludes that the contractual right was relinquished. The inquiry

concerns the waiving party’s words and conduct.

(Quach, 16 Cal.5th at pg. 584.)

Here,

Defendants cannot avoid waiver by claiming counsel “recently learned” of the

alleged arbitration agreement on March 11, 2026. (Decl. of Tracy ¶15, Exh. 5.) Defendants’ own evidence establishes that

Defendant Superbalife knew or had constructive knowledge of the alleged

arbitration agreement long before March 11, 2026. Fred Buckley (“Buckley”), Defendant

Superbalife’s President, states he was personally involved in Defendant Superbalife’s

decision to enter arbitration agreements with employees in mid-2021. (Decl. of Buckley ¶4.) Buckley further claims Plaintiff personally

handed him her signed agreement, that he countersigned and counter-initialed it

while they were together in the office, and that the existence of an

arbitration agreement all employees needed to sign was “well known” in the

small office. (Decl. of Buckley ¶¶6-7.)

Kirsten

E. Miller’s (“Miller”) declaration in reply establishes only her personal lack

of awareness. Miller, Defendant

Superbalife’s attorney, states that she did not know of Plaintiff’s alleged

agreement when she prepared the Answer or propounded discovery and that she

personally first learned of the agreement on March 9. (Reply Decl. of Miller ¶¶3-5.) However, Defendant Superbalife—not merely its

outside counsel—is the party asserting the contractual right.

Buckley’s

declaration in reply confirms that he had been involved with the arbitration

agreements and employee documents and knew employees “like Ms. Amador” had begun signing arbitration agreements years earlier. (Reply Decl. of Buckley ¶¶5-6.) Buckley’s explanation is that, when this lawsuit arrived, his attention was divided and he “was not focused on the fact that there was an obligation to arbitrate.” (Reply Decl. of Buckley ¶6.) When he later began pulling documents, he “remembered that employees were required to sign arbitration agreements.” (Reply Decl. of Buckley ¶6.) That testimony describes forgetfulness and lack of attention; it does not establish that Defendant Superbalife lacked actual or constructive knowledge of its own arbitration program or the agreements maintained in its records. Pursuant to Quach, Defendant Superbalife’s constructive knowledge of the arbitration agreement is sufficiently established. (Quach, 16 Cal.5th at pg. 584.)

Most

importantly, Defendants invoked the litigation machinery by propounding two sets of written discovery. Defendant Superbalife served 72 document requests seeking, among other things, Plaintiff’s social media activity; communications with employees and Buckley; administrative complaints and other lawsuits; unemployment, workers’ compensation, and disability records; mitigation and income evidence; discrimination, harassment, accommodation, CFRA, retaliation, whistleblowing, and wrongful-termination evidence; attorney-fee and punitive-damage evidence; extensive medical and mental-health records; bankruptcy records; and documents concerning any business operated by Plaintiff. (Reply Decl. of Miller ¶¶4-6, Exh. B at RFP Nos. 10-25, 29-69, 71-72.) Defendant Superbalife’s discovery requests are merits discovery directed to the substance and damages of Plaintiff’s claims, not discovery limited to arbitration or formation.

Based

on the foregoing, Plaintiff sufficiently demonstrated that Defendants waived their right to arbitrate the instant matter. Accordingly, Defendants’ motion is denied.

C.

Conclusion

Defendants’

motion to compel arbitration is denied.

Moving Party to

give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court